

25STCV17094 25STCV17094

County: los-angeles

Division: Civil Law and Motion

Department: 734

Hearing date: 2026-06-25

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Case Number: 25STCV17094 Hearing Date: June 25, 2026 Dept: 734

The

following tentative ruling is issued pursuant to Rule of Court 3.1308 at 3:51 PM on June 22, 2026.

Notice

of intent to appear is REQUIRED pursuant to California Rule of Court

3.1308(a)(1). The Court does not desire

oral argument on the motion addressed herein.

As

required by Rule 3.1308(a)(1), any party seeking oral argument must notify ALL

OTHER PARTIES and the staff of Department 734 by 4:00 p.m. on June 24, 2026.

Notice to Department 734 should be sent by

email to , with opposing parties copied on the email. The high volume of telephone calls to

Department 734 may delay the Court's receipt of notice, so telephonic notice to

213-830-0776 should be reserved for situations where parties are unable to give

notice by email.

Per

Rule of Court 3.1308, the Court may not entertain oral argument if notice of intention to appear is not given.

Plaintiffs allege that Defendant security

guard forced Plaintiff to perform a sexual act on Defendant after he forced his way into Plaintiff's apartment unit.

Defendant AIDS Healthcare Foundation

filed Cross-Complaint against the security guard's company.

Defendant AIDS Healthcare Foundation

moves for an order that Plaintiff make initial disclosures and pay sanctions pursuant to Code Civ. Proc. § 2016.090.

TENTATIVE RULING

Defendant AIDS Healthcare Foundation's

motion for an order that Plaintiff make initial disclosures and pay sanctions pursuant to Code Civ. Proc. § 2016.090 is MOOT.

Defendant's request for sanctions

against Plaintiff and/or her attorneys, Thomas Adams, Nate Ford, and Daniel Greenbaum,

jointly and severally, is GRANTED in the

reduced sum of \$406.65. Sanctions are to be paid to Defendant's counsel within 20 days.

ANALYSIS

Motion To Compel Initial

Disclosures and For Sanctions

Discussion

On June 9, 2026,

Plaintiff's counsel filed a declaration in opposition, which was untimely as to the June 11, 2026 hearing date. The Court continued the hearing date on this motion, and the Court addresses the Declaration of Thomas G. Adams filed on June 9, 2026.

Defendant AIDS Healthcare Foundation

("AHF") moves for an order that Plaintiff make initial disclosures and pay sanctions pursuant to Code Civ. Proc. § 2016.090. The ground for this motion is that Plaintiff has failed, without justification, to respond to AHF's properly propounded January 12, 2026, request for initial disclosures, that Plaintiff has thus waived her right to object to making the disclosures, and that Plaintiff must be compelled to make the disclosures promptly.

Code Civ. Proc. § 2016.090, applicable

to cases filed after January 1, 2024, provides in pertinent part:

(a) The following shall

apply in a civil action unless modified by stipulation by all parties to the action:

(1) Within 60 days of a

demand by any party to the action, each party that has appeared in the action, including the party that made the demand, shall provide to the other parties an initial disclosure that includes all of the following information:

(A) The names, addresses,

telephone numbers, and email addresses of all persons likely to have discoverable

information, along with the subjects of that information, that the disclosing party

may use to support its claims or defenses, or that is relevant to the subject matter

of the action or the order on any motion made in that action, unless the use would

be solely for impeachment. The disclosure required by this subparagraph is not required

to include persons who are expert trial witnesses or are retained as consultants

who may later be designated as expert trial witnesses, as that term is described

in Chapter 18 (commencing with Section 2034.010) of Title 4 of Part 4.

(B) A copy, or a description

by category and location, of all documents, electronically stored information, and

tangible things that the disclosing party has in its possession, custody, or control

and may use to support its claims or defenses, or that is relevant to the subject

matter of the action or the order on any motion made in that action, unless the

use would be solely for impeachment.

(C) Any contractual agreement

and any insurance policy under which an insurance company may be liable to satisfy,

in whole or in part, a judgment entered in the action or to indemnify or reimburse for payments made to satisfy the judgment.

(D) Any and all contractual

agreements and any and all insurance policies under which a person, as defined in

Section 175 of the Evidence Code, may be liable to satisfy, in whole or in part,

a judgment entered in the action or to indemnify or reimburse for payments made

to satisfy the judgment. Only those provisions of an agreement that are material

to the terms of the insurance, indemnification, or reimbursement are required to

be included in the initial disclosure. Material provisions include, but are not

limited to, the identities of parties to the agreement, the nature and limits of

the coverage, and any and all documents regarding whether any insurance carrier

is disputing the agreement's or policy's coverage of the claim involved in the action.

(2) A party shall make

its initial disclosures based on the information then reasonably available to it.

A party is not excused from making its initial disclosures because it has not fully

investigated the case, because it challenges the sufficiency of another party's

disclosures, or because another party has not made its disclosures.

...

(4) A party's obligations

under this section may be enforced by a court on its own motion or the motion of

a party to compel disclosure.

(5) A party's disclosures

under this section shall be verified either in a written declaration by the party

or the party's authorized representative, or signed by the party's counsel.

...

(Code Civ. Proc. § 2016.090.)

Here, the motion filed on March 19,

2026 indicated that Plaintiff failed to make the initial disclosures required by

Code Civ. Proc. § 2016.090 despite demand having been made by Defendant AIDS Healthcare

Foundation on January 12, 2026. (Declaration of Jonathan M. Eisenberg, ¶¶ 7 – 12.)

On June 9, 2026, Plaintiff's counsel Thomas G. Adams filed a Declaration indicating

that Plaintiff served initial disclosures on March 23, 2026. (Adams Declaration,

¶¶ 2, 3.)

As such, the motion to compel initial

disclosures pursuant to Code Civ. Proc. § 2016.090 is MOOT.

Defendant requests the imposition of

sanctions against Plaintiff and/or her attorneys, Thomas Adams, Nate Ford, and Daniel

Greenbaum, in favor of AHF, in the sum of \$813.30, pursuant to Code of Civil Procedure

sections 2023.010 (subsections d and h) and 2023.030 (subsection a).

Misuses of the discovery

process include, but are not limited to, the following:

. . .

(d) Failing to respond

or to submit to an authorized method of discovery.

. . .

(h) Making or opposing,

unsuccessfully and without substantial justification, a motion to compel or to limit
discovery.

(Code Civ. Proc. § 2023.010.)

To the extent authorized

by the chapter governing any particular discovery method or any other provision

of this title, the court, after notice to any affected party, person, or attorney,

and after opportunity for hearing, may impose the following sanctions against anyone

engaging in conduct that is a misuse of the discovery process:

(a) The court may impose

a monetary sanction ordering that one engaging in the misuse of the discovery process,

or any attorney advising that conduct, or both pay the reasonable expenses, including

attorney's fees, incurred by anyone as a result of that conduct. The court may also

impose this sanction on one unsuccessfully asserting that another has engaged in

the misuse of the discovery process, or on any attorney who advised that assertion,

or on both. If a monetary sanction is authorized by any provision of this title,

the court shall impose that sanction unless it finds that the one subject to the

sanction acted with substantial justification or that other circumstances make the

imposition of the sanction unjust.

(Code Civ. Proc. § 2023.030.)

The court may award sanctions under the

Discovery Act in favor of a party who files a motion to compel discovery, even though

. . . the requested discovery was provided to the moving party after the motion

was filed.

(Cal. Rules Court, Rule 3.1348(a).)

The fact that Defendant did not meet and confer with Plaintiff regarding the completeness or compliance of responses does not bar a sanctions award, because section 2016.090(a)(4), like other provisions of the Discovery Act regarding a failure to provide initial responses to discovery demands, does not require prefiling meet and confer effort. The Court finds that Plaintiff's failure to provide initial disclosures until after this motion to compel was filed constitutes a misuse of the discovery process which justifies monetary sanctions. The request for sanctions against Plaintiff and/or her attorneys, Thomas Adams, Nate Ford, and Daniel Greenbaum, jointly and severally, is GRANTED in the reduced sum of \$406.65 for 3 total hours at \$135.55/hour. (Eisenberg Decl., ¶¶ 13, 14.) Sanctions are to be paid to Defendant's counsel within 20 days.